ORDINANCE NO. 6096

AN ORDINANCE TO AMEND CHAPTER 10.40 OF THE CODE OF THE CITY OF ELIZABETH, ENTITLED "PARKING RESTRICTIONS ON TRUCKS, BUSES AND COMMERCIAL VEHICLES," SPECIFICALLY TO AMEND SECTION 10.40.050 TO REPLACE THE MAXIMUM PENALTY OF $250.00 WITH A MINIMUM PENALTY OF $250.00 FOR OFF-STREET PARKING OF COMMERCIAL VEHICLES IN RESIDENTIAL ZONES

WHEREAS, off-street parking of commercial vehicles in residential zones is expressly prohibited in Section 10.40.045 in the Code of the City of Elizabeth: "[a] property owner and/or vehicle owner shall not allow off-street parking of any commercial motor vehicle as defined in N.J.S.A. 39:1-1, weighing five thousand (5,000) pounds or more in residential zones and said commercial motor vehicle shall be stored in a garage. A commercial motor vehicle as described herein does not have to be registered as a commercial motor vehicle or have commercial motor vehicle plates for the provisions contained herein to be applicable and enforceable"; and

WHEREAS, this prohibition is also specified in the City's Land Use Code, Section 17.36.030, which states that "accessory parking in residential zones shall be limited to passenger vehicles [....]"; and

WHEREAS, the off-street parking of commercial vehicles in residential areas of the City continues to be a growing concern in the community. The unauthorized parking of trucks, buses, and commercial vehicles is a detriment to the integrity of the City's residential zones, a nuisance to residents, and a strain of City resources to ensure compliance; and

WHEREAS, currently, the penalty for the off-street parking of commercial vehicles in residential areas is "not more than two-hundred fifty dollars ($250.00)." It is in the City's best interest to increase the penalty for this parking violation to a minimum of $250.00 to deter the off-street parking of trucks, buses, and commercial vehicles in residential zones; and now, therefore

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF ELIZABETH:

SECTION 1. The Code of the City of Elizabeth, Section 10.40.050, Violations and Penalties, is hereby amended and shall be read as follows:

Unless another penalty is expressly provided by New Jersey Statute, or another section of this chapter, every person convicted of a violation of provisions of this chapter or any supplement thereto shall be liable to a penalty of not less than two hundred fifty dollars ($250.00) or imprisonment for a term not exceeding fifteen (15) days, or both.

A. The violation and penalty provisions of prior code Chapters 141 and 143 of the code of the city of Elizabeth are amended to increase the penalty provisions of all parking and moving violations of the code of the city of Elizabeth contained in such chapters to add the amount of one dollar ($1.00) to each fine imposed and collected for the violations of the aforesaid chapters of the code of the city of Elizabeth for the "Autism Research and Treatment Fund," as authorized by P.L. 2003, c. 144 and two dollars ($2.00) to each fine imposed and collected for violations of the aforesaid chapters of the code of the city of Elizabeth for the "New Jersey Forensic DNA Laboratory Fund," as authorized by P.L. 2003, c. 183.

PRESENTED to the Mayor for APPROVAL or DISAPPROVAL on FEB 13 2025
City Clerk

B. The violation and penalty provisions of this title of the code of the city are amended to increase the penalty provisions of all parking and moving violations of the code of the city contained in such chapters to add the amount of one dollar ($1.00) to each fine imposed and collected for the violations of the aforesaid chapters of the code of the city for the "New Jersey Brain Injury Research Fund," as authorized by the "Brain Injury Research Act, P.L. 2003, c. 200."

SECTION 2. All ordinances or parts of ordinance inconsistent with the provisions of this ordinance be and the same are hereby repealed.

SECTION 3. If any portion or clause of this ordinance is declared invalid for any reason whatsoever, same shall not affect the validity or constitutionality of any other part or portion of this ordinance.

SECTION 4. The effective date of this ordinance shall be twenty (20) days after its final passage by City Council and approval by the Mayor at the time and in the manner provided by law.

PASSED: 2/11/2025

CARLOS CEDENO
PRESIDENT OF CITY COUNCIL

APPROVED: 2/13/2025

J. CHRISTIAN BOLLWAGE
MAYOR

ATTEST:

YOLANDA M. ROBERTS, R.M.C.
MUNICIPAL CLERK